

as if the words one thousand pounds were substituted for the words one thousand two hundred pounds.

Term of office.  
32 & 33 Vict.  
c. 97.

4. Section two of the Government of India Act, 1869, shall, as regards any appointment made after the passing of this Act, be read and construed as if the word "seven" were substituted for the word "ten."

Repeal of  
39 Vict. c. 7.  
52 & 53 Vict. c. 65.

5. The Council of India Act, 1876, and the Council of India Reduction Act, 1889, are hereby repealed.

Short title.

6. This Act may be cited as the Council of India Act, 1907.

## CHAPTER 36.

An Act to grant Money for the purpose of certain Local Loans out of the Local Loans Fund, and for other purposes relating to Local Loans. [28th August 1907.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Grants for  
public works.

1.—(1) For the purpose of local loans there may be issued by the National Debt Commissioners the following sums, namely:—

(a) For the purpose of loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of three million pounds;

(b) For the purpose of loans by the Commissioners of Public Works in Ireland any sum or sums not exceeding in the whole the sum of seven hundred thousand pounds.

50 & 51 Vict.  
c. 16.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

Certain debts  
not to be  
reckoned as  
assets of local  
loans fund.

2. Whereas it is expedient that the principal of the several local loans specified in the First Schedule to this Act should, to the extent specified in the last column of that Schedule, not be reckoned as assets of the local loans fund established under the National Debt and Local Loans Act, 1887; therefore, the principal of the said loans shall to that extent be written off from the assets of the local loans fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Transfer of  
volunteer corps  
mortgages  
from Commis-

3. Whereas the Public Works Loan Commissioners have from time to time, under the powers conferred on them by the Military Lands Acts, 1892 to 1900, lent various sums of money

to volunteer corps in England and Scotland upon the security of certain lands belonging to, and certain parliamentary grants payable to, those corps :

sioners to  
Secretary of  
State.

And whereas by an agreement dated the twenty-first day of March nineteen hundred and seven, and made between Robert Philpot, the secretary of the said Commissioners, of the one part, and the Secretary of State for the War Department of the other part (which agreement is herein-after referred to as the English agreement and copies whereof have been deposited with the Clerk of the Parliaments and the Clerk of the House of Commons) the said Robert Philpot in consideration of the payment by the Secretary of State into the Bank of England to the credit of the Commissioners of the sum therein mentioned, being the total amount then due to the Commissioners for principal and interest in respect of the mortgages specified in the schedule to the English agreement, agreed upon the request of the Secretary of State to transfer to him those mortgages and the securities for the same :

And whereas by an agreement made between the same parties and executed by them on the sixteenth and nineteenth days respectively of March nineteen hundred and seven (which agreement is herein-after referred to as the Scottish agreement and copies whereof have been deposited with the Clerk of the Parliaments and the Clerk of the House of Commons) the said Robert Philpot in consideration of the payment by the Secretary of State into the Bank of England to the credit of the Commissioners of the sum therein mentioned, being the total amount then due to the Commissioners for principal and interest in respect of the securities specified in the schedule to the Scottish agreement, bound himself and the Commissioners when called upon by the Secretary of State to transfer to him those securities :

And whereas it is expedient that the mortgages and securities specified in the respective schedules to the English and Scotch agreements and the several properties comprised in those mortgages and securities should become forthwith vested in the Secretary of State :

Therefore by virtue of this Act and without any further assurance :—

- (1) The right of the Public Works Loan Commissioners to demand, sue for, and recover, and give receipts for the several sums secured by the mortgages and securities specified in the respective schedules to the English and Scottish agreements, and the benefit of all securities for those sums, and the benefit of and the right to sue on all covenants with the Commissioners, and the right to exercise all powers vested in the Commissioners under or by virtue of those mortgages and securities shall become vested in the Secretary of State for the War Department for the time being absolutely ; and

- (2) The several properties comprised in the said mortgages and securities shall become vested in the Secretary of State for the War Department for the time being for all the estate and interest therein of the Commissioners, but subject to all rights of redemption now existing therein.

Public loan to  
Jamaica.

4.—(1) The Treasury may advance by way of loan to the Government of Jamaica, for the purpose of restoring, replacing, or improving public and other buildings damaged by the recent earthquake and subsequent fire in the colony or purchasing sites for new buildings to replace the same, or for the purpose of making loans to persons within the colony on such security and terms of repayment as may be authorised by the Legislature of the colony for the purposes of restoring or replacing buildings so damaged, or in other ways repairing the loss and damage caused by the earthquake and fire, any sums not exceeding in the whole eight hundred thousand pounds.

(2) The advance shall bear interest at the rate for the time being applicable to loans made out of the Local Loans Fund on the security of local rates in England.

62 & 63 Vict.  
c. 36.

(3) The provisions of the Colonial Loans Act, 1899, set out in the Second Schedule to this Act, shall apply with respect to the advance authorised by this section as if they were herein re-enacted.

Public loan to  
Nigeria.

5.—(1) The Treasury may advance by way of loan to the Government of Southern Nigeria, for the purpose of constructing and improving railway and other communication in Southern and Northern Nigeria, any sums not exceeding in the whole two million pounds.

(2) The advance shall bear interest at the rate for the time being applicable to loans made out of the Local Loans Fund on the security of local rates in England.

62 & 63 Vict.  
c. 36.

(3) The provisions of the Colonial Loans Act, 1899, set out in the Second Schedule to this Act shall apply with respect to the advance authorised by this section as if they were herein re-enacted, but with the substitution, in paragraph (b) of subsection (1) of section two as set out in the said schedule, of the words "charges not existing at the date of the passing of this Act" for the words "subsequent charges."

Extension of  
period for re-  
payment of  
former loans  
under the  
Labourers  
(Ireland) Acts.

6.—(1) The period for the repayment of any loan made by the Commissioners of Public Works in Ireland under the Labourers (Ireland) Acts, 1883 to 1903, to rural district councils shall be extended by a period of eighteen and a half years, and the annual sum to be paid on account of the repayment of the outstanding principal of the loan and interest shall be re-calculated accordingly in accordance with regulations made by the Treasury for the purpose, and the payments to be made on the first day of May one thousand nine hundred and eight and thereafter in respect of that annual sum shall be made on the basis of the sum as so re-calculated.

(2) Where any sums advanced by the Commissioners under the Labourers (Ireland) Acts, 1883 to 1903, have been issued by more than one instalment, the several instalments shall, for the purposes of this section, be treated as one advance, and the date from which the period for repayment is to be calculated for the purposes of this section shall be some convenient date fixed in accordance with regulations made by the Treasury, as nearly as may be midway between the gale day next after the issue of the first instalment and the gale day next after the issue of the last instalment.

(3) Nothing in this section shall affect the rate of interest on any such loan, nor prejudice any securities held by the Commissioners of Public Works in respect of the loan.

7. The power of the Public Works Loan Commissioners under Part I. of the Harbours and Passing Tolls, &c., Act, 1861, or any other Act, to make advances to harbour authorities shall, as regards advances to harbour authorities in Ireland, be transferred to the Commissioners of Public Works in Ireland, and, as respects any such advances, references in those Acts or in section seven of the Public Works Loans Act, 1882, or in any other Act or document to the Public Works Loan Commissioners shall be construed as references to the Commissioners of Public Works in Ireland :

Transfer to Commissioners of Public Works in Ireland of powers of Public Works Loan Commissioners to make loans to harbour authorities in Ireland.  
24 & 25 Vict. c. 47.  
45 & 46 Vict. c. 62.

Provided that nothing in this section shall affect any loan made to a harbour authority in Ireland before the passing of this Act, or the powers and duties of the Public Works Loan Commissioners in relation thereto.

8. Planting, whether for shelter or for any other object, shall be a purpose for which loans may be made under the Landed Property Improvement (Ireland) Acts, and the words "for shelter" in section five of the Drainage and Improvement of Land (Ireland) Act, 1866, are hereby repealed.

Amendment as to loans for planting in Ireland.  
29 & 30 Vict. c. 40.

9. Whereas the Public Works Loan Commissioners in the years eighteen hundred and eighty-six and eighteen hundred and eighty-seven advanced to the Cullen Harbour Commissioners, on the security of the harbour revenues, undertaking, and property, sums amounting to four thousand pounds towards defraying the cost of works authorised by the Cullen Harbour Order, 1884, the said loan being repayable with interest at the rate of three pounds fifteen shillings per cent. per annum within a period expiring on the fourth day of April nineteen hundred and twenty-seven :

Remission of certain claims against Cullen Harbour Commissioners.

And whereas the interest and instalments of principal due in respect of the loan were duly paid until the fourth day of October eighteen hundred and ninety-two, since which date the income of the harbour has proved insufficient to meet the payments due in respect of the loan, and there are now due to the Public Works Loan Commissioners arrears of interest which amounted on the thirty-first day of March last to one thousand four

hundred and sixty-nine pounds five shillings and sixpence, while the principal outstanding amounts to three thousand six hundred and eighty-four pounds thirteen shillings and elevenpence :

And whereas repairs and improvements to the harbour are needed in order to render the accommodation adequate and safe, and the Cullen Harbour Commissioners are unable to raise the money for carrying out the necessary works as long as the said debt remains, and it is expedient that the said principal debt should be extinguished and the arrears of interest remitted :

Therefore the said principal debt so far as not repaid together with all claims for interest thereon shall be extinguished, and the amount thereof shall be deemed a free grant from Parliament.

Short title.

**10.** This Act may be cited as the Public Works Loans Act, 1907.

Section 2.

## SCHEDULES.

### FIRST SCHEDULE.

#### PART I.

##### LOAN BY THE PUBLIC WORKS LOAN COMMISSIONERS.

*Advanced under the Harbours and Passing Tolls, &c., Act, 1861*  
(24 & 25 Vict. c. 47).

| Name of Borrower.              | Amount of Loan. | Amount to be written off from Local Loans Fund, and to be extinguished. |
|--------------------------------|-----------------|-------------------------------------------------------------------------|
| Cullen Harbour Commissioners - | £ 4,000         | £ 3,684 13 11                                                           |

#### PART II.

##### LOANS BY THE COMMISSIONERS OF PUBLIC WORKS, IRELAND.

(1) *Loans under the Landed Property Improvement (Ireland) Act, 1847*  
(10 Vict. c. 32).

| Name of Borrower. | Amount of Loan. | Amount to be written off from Local Loans Fund. |
|-------------------|-----------------|-------------------------------------------------|
| Daniel Ottley -   | £ 300           | £ s. d.<br>99 19 3                              |
|                   | 200             | 73 15 3                                         |

(2) *Loans under the Land Law (Ireland) Act, 1881*  
(44 & 45 Vict. c. 49, s. 31).

| Name of Borrower.                               | Amount of Loan. | Amount to be written off from Local Loans Fund. |
|-------------------------------------------------|-----------------|-------------------------------------------------|
|                                                 | £               | £ s. d.                                         |
| Rose Monahan - - - -                            | 200             | 127 18 10                                       |
| Patrick McPague - - - -                         | 60              | 1 10 6                                          |
| Thomas and Patrick Loughlin, now Garret Hagans. | 80              | 2 5 9                                           |
| Edward Galligan - - - -                         | 80              | 29 8 6                                          |
| Eleanor Ryan - - - -                            | 100             | 80 2 2                                          |
| Edward McManus - - - -                          | 40              | 8 10 0                                          |
| Samuel Kennedy - - - -                          | 100             | 70 9 9                                          |
| John Brady - - - -                              | 70              | 63 6 3                                          |
| John Mallon - - - -                             | 50              | 36 6 7                                          |
| Murty O'Shea - - - -                            | 65              | 44 1 3                                          |
| Lacky McGloin - - - -                           | 40              | 36 9 5                                          |

(3) *Loans under the Drainage and Improvement of Lands (Ireland) Act, 1863 (26 & 27 Vict. c. 88).*

| Name of Proprietor.                           | Amount of Principal Charge. | Amount to be written off from Local Loans Fund. |
|-----------------------------------------------|-----------------------------|-------------------------------------------------|
|                                               | £ s. d.                     | £ s. d.                                         |
| Mrs. Martha Switzer - - - -                   | 30 5 10                     | 5 6 2                                           |
| J. Ryan - - - -                               | 28 10 9                     | 15 14 2                                         |
| The Parsonstown and Portumna Railway Company. | 18 10 5                     | 15 18 2                                         |

(4) *Loan under the Drainage Maintenance Act, 1866*  
(29 & 30 Vict. c. 49).

|                       |       |       |
|-----------------------|-------|-------|
| Thomas Beirne - - - - | 4 0 3 | 4 0 3 |
|-----------------------|-------|-------|

PART III.

LOAN BY THE FISHERY BOARD FOR SCOTLAND.

*Loan under the Crofters Holdings (Scotland) Act, 1886*  
(49 & 50 Vict. c. 29).

| Name of Borrower. | Fishery District. | Amount of Loan | Amount to be written off from Local Loans Fund. |
|-------------------|-------------------|----------------|-------------------------------------------------|
|                   |                   | £              | £ s. d.                                         |
| Benjamin McIver - | Helmsdale -       | 66             | 3 15 7                                          |

Sections 4  
and 5.

## SECOND SCHEDULE.

### PROVISIONS OF COLONIAL LOANS ACT, 1899, APPLIED.

Power to make  
advances to  
certain colo-  
nies and places.  
50 & 51 Vict.  
c. 16.

1.—(1) \* \* \* \* \*

(2) The advances authorised by this Act shall be local loans within the meaning of the National Debt and Local Loans Act, 1887, and that Act shall apply accordingly.

(3) Every such advance \* \* \* \* \*

shall be repaid within such period (not exceeding fifty years from the date thereof) as the Treasury and the Secretary of State determine in each case, and either by means of equal instalments of principal, or by means of an annuity of principal and interest combined as may be similarly determined.

Security for  
loan.

2.—(1) An advance shall not be made in pursuance of this Act until the legislative authority of the colony or place to the Government of which the advance is to be made have provided to the satisfaction of the Treasury and the Secretary of State—

(a) for raising and appropriating and duly applying the loan ;

(b) for charging on the general revenues and assets of the colony, with priority over any subsequent charges, the principal of the loan ; and

(c) for so charging and also for remitting to the Treasury in such manner as the Treasury determine—

(i) such yearly or half-yearly payments on account of the interest on, and the repayment of the principal of, the loan as the Treasury fix ; and

(ii) interest at such rate as the Treasury fix on any such payment in arrear ; and

(d) for raising or securing the raising of sufficient revenue to meet the above charges.

(2) Every Act or ordinance of the legislative authority of the colony or place which in any way impairs the validity or priority of any such charge or diminishes the revenue to be raised as above mentioned shall, so far as it impairs or diminishes the same, be void unless the consent of the Treasury and the Secretary of State has been previously obtained.

## CHAPTER 37.

An Act to authorise the Treasury to guarantee the payment of a Loan to be raised by the Colony of the Transvaal.

[28th August 1907.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to  
Treasury to  
guarantee  
Transvaal loan.

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee in such manner as they think fit the payment of the interest on any loan raised by the Colony of the Transvaal